

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/09/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00793
CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH
HEARING ON SUMMARY MOTION BY WALNUT CREEK PRESBYTERIAN CHURCH
FILED BY:
TENTATIVE RULING:

Motion **continued** by the court to March 2, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY:
TENTATIVE RULING:

See LINE 4.

3. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO ENFORCE SETTLEMENT AGREEMENT
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

See LINE 4.

4. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

The Court continues the hearing on the cross-motions to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 to March 2, 2026 at 9:00 a.m. No further papers are to be filed on these motions. The Court continues all related Motions to Seal to the same date.

5. 9:00 AM CASE NUMBER: C23-00323
CASE NAME: BOWLES & VERNA LLP VS. JACK ELDER
*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT
FILED BY: BOWLES & VERNA LLP
TENTATIVE RULING:

Plaintiff Bowles & Verna LLP ("Plaintiff") filed a Motion to Enforce Settlement on October 2, 2025 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on February 9, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 13, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Jack Elder ("Defendant") in the amount of \$30,000.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of William T. Nagle filed October 2, 2025 ("Supporting Declaration"), ¶12 and **Exhibit A** (Settlement Agreement) thereto. Upon such payment, the matter would be dismissed with prejudice. Settlement Agreement, ¶12, Supporting Declaration, **Exhibit A**. The agreement included provisions for certain late payment penalties and also contained another payment option. See *id.*

Analysis

Defendant was duly served with the motion. The motion is unopposed.

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶19, Supporting Declaration, **Exhibit A**.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶2-6. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶1 *et seq.*

No payments were made by Defendant and there remains \$30,000.00 due and owing. See Supporting Declaration, ¶6.

Plaintiff also seeks an award of \$11,700 in late payment penalties, attorneys' fees of \$1,870.00, and costs of \$815.22. Plaintiff also seeks an award of prejudgment interest in the amount of \$500.81 (at the rate of \$8.21 per *diem* from July 31, 2025). See Supporting Declaration, ¶8.

Late Payment Penalties

Where a settlement agreement seeks to impose late payment penalties, the Court must consider whether such penalties constitute valid liquidated damages or an unenforceable penalty. See *Greentree Financial Group, Inc. v. Execute Sports, Inc.* (2008) 163 Cal.App.4th 495; Civ. Code § 1671(b) ("a provision in a contract liquidating the damages for the breach of the contract is valid unless the party seeking to invalidate the provision establishes that the provision was unreasonable under the circumstances existing at the time the contract was made.").

A liquidated damages clause will generally be considered unreasonable, and hence unenforceable under section 1671(b), if it bears no reasonable relationship to the range of actual damages that the parties could have anticipated would flow from a breach. *Greentree Financial Group, Inc. v. Execute Sports, Inc.*, *supra*, 163 Cal.App.4th at 499.

The relevant provision in the Settlement Agreement states: "There will be a late payment penalty applied for any late payments in the amount of \$300 for each month a payment is late." Settlement Agreement, ¶12, Supporting Declaration, **Exhibit A**. The agreement goes on to describe the reoccurring nature of this late penalty in detail:

Each \$6,000 payment shall be sent to B&V at 2121 North California Boulevard, Suite 875, Walnut Creek, California 94596, on or before each of the five dates specified above.

There will be a late payment penalty applied for any late payments in the amount of \$300 for each month a payment is late. For example, if Mr. Elder pays the third quarter \$6,000 payment on August 10, 2024, he will owe an additional \$300. The late payment penalty will renew every 30 days if any quarterly payment is over 30 days due and owing. For example, if Mr. Elder does not pay the third quarter \$6,000 payment until September 10, 2024, he will owe \$300 as a late payment penalty for the late payment in the first 30 days and he will owe an additional \$300 as a late payment penalty made over 30 days late (for the renewed 30-day period). The late penalty fees will be applied to any and all late payments owed under the payment plan schedule set forth above.

See *id.*

While arguably a one-time late payment of \$300 might well be a reasonable estimate of the damage that would flow from a breach, a \$300 perpetually running late fee as to each payment is not, especially

when the right to recover prejudgment interest on the unpaid amounts is considered.

There are five payment deadlines. Upon missing a payment, a \$300 late payment penalty begins to run and continues month after month. See Supporting Declaration, ¶18 (Plaintiff recounts the running of the amounts as October 2025, observing reciting that there was then owing a “total of \$4,200 in late payment penalties on the first payment,” “a total of \$3,000 in late payment penalties on the second payment, “total of \$2,400 in late payment fee penalties on the third payment,” etc.).

Once all five payments were passed due, a total of \$1,500 per month would be accruing. That is effectively, \$18,000 a year in late penalties. On a \$30,000 liability, that would amount to a 60% per *annum* rate of interest on top of the claimed prejudgment interest at the rate of 10% per *annum*. This is not only unreasonable, but unconscionable. It certainly bears no reasonable relationship to the range of actual damages the parties could have anticipated from a breach of the agreement to settle the dispute.

Judgment for the late payment penalties is denied.

Prejudgment Interest

Plaintiff shall also recover prejudgment interest on the principal damages at the legal rate of ten (10%) per annum. Civ. Code § 3289; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.156. When a contract does not specify a rate of interest, the rate is ten (10%) per annum from the date of the breach. Civ. Code § 3289(b); CJER Civ. Pro.—Trial, § 16.156.

Plaintiff shall recover prejudgment interest in the amount of \$1,586.30. At the legal rate of 10% per annum, prejudgment interest, through and including February 9, 2026, totals \$1,586.30 [$\$30,000.00 \times 0.10 \div 365 \times 193$ days (July 31, 2025 through February 9, 2026) = \$1,586.30, rounded down to the nearest whole cent].

Total Principal Amount

The Court finds that the total principal amount of damages is the \$30,000.00 unpaid settlement amount, plus prejudgment interest of \$1,586.30.

Costs

Plaintiff seeks an award of \$815.22 in costs. See Supporting Declaration, ¶18 (“\$815.22 in costs were incurred on this matter.”). However, the Supporting Declaration fails to itemize or otherwise describe the nature of the costs claimed. Nor was any memorandum of costs filed as part of the moving papers.

Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 4 below, the Motion to Enforce Settlement is GRANTED.
 - a. Plaintiff shall have judgment against Defendant in the principal amount of \$30,000.00, plus prejudgment interest of \$1,586.30.
 - b. Plaintiff’s submitted form of money judgment against Defendant will be entered by the

Court. Any prior dismissal entered herein against the Defendant and/or notice of conditional settlement is hereby set aside in connection with entry of such judgment.

4. Although the Court finds that Defendant was duly served with the motion papers, it is not clear that the papers, *as served*, contained the hearing information (date, time, etc.). THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.

6. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: RE: COURT APPOINTED RECEIVER'S MOTION FOR ORDER APPROVING FINAL REPORT AND ACCOUNT, DISCHARGING RECEIVER, APPROVING FINAL FEES AND COSTS OF RECEIVER AND COUNSEL, APPROVING DISPOSITION OF CMD SALOON, LLC'S ASSETS AND TERMINATING RECEIVERSHIP.**

FILED BY:

TENTATIVE RULING:

This matter was previously continued to April 23, 2026. See Order entered January 20, 2026.

7. 9:00 AM CASE NUMBER: C24-01143

CASE NAME: BANC OF CALIFORNIA VS. SUTTER SQUARE HOLDINGS, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: ORDER: (1) APPROVING RECEIVER'S FINAL ACCOUNTING; (2) APPROVING RECEIVER'S FEES AND EXPENSES; (3) APPROVING FINAL DISBURSEMENT OF FUNDS; (4) EXONERATING RECEIVER'S BOND ETC**

FILED BY: RAILE, BELLAN

TENTATIVE RULING:

Parties to Appear.

8. 9:00 AM CASE NUMBER: C24-01622

CASE NAME: CHRISTOPHER JARZYNKA VS. TATILA DOWNING

***HEARING ON MOTION IN RE: SELL PROPERTY**

FILED BY: JARZYNKA, CHRISTOPHER THOMAS

TENTATIVE RULING:

Plaintiff Jarzynka's motion to sell the property is denied without prejudice. Plaintiff may renew his motion after the Court makes a determination on whether plaintiff is entitled to partition and if so, determines the interests of the parties in the property.

Plaintiff alleges that he and Defendant purchased a property on Caitlin Court together as tenants-in-common, but their relationship has ended and Plaintiff now wants to sell the property.

Plaintiff filed this case requesting that the Court order a partition of the property.

The question here is whether the Court should order the sale of the property pursuant to Code of Civil Procedure sections 874.317 to 874.321 or if the Court should first determine whether Plaintiff has a right to partition the property and each parties' interests in the property pursuant to Code of Civil Procedure sections 872.710(a) and 872.720(a).

Before considering whether Plaintiff is correct in his analysis of Code of Civil Procedure section 874.317, et seq. the Court must determine whether the Court has already answered this question.

In August 2024, Plaintiff filed a motion requesting that the Court order the determination of the fair market value of the property by appointing an appraiser. That motion also noted that the court could enter an interlocutory judgement that Plaintiff is entitled to partition and that each side owns an undivided one-half interest in the property. But those issues were not included in the notice of motion or in the Court's ruling on the motion. Thus, while discussed in August 2024, there is no indication that the Court made a determination regarding the parties' rights to a partition or their respective interests when ordering a determination of the fair market value of the property. (See 10/28/24 minute order; order filed 11/20/24.)

Later, the Court determined the fair market value of the property and ordered the parties to engage in the buyout process. (Order filed 9/19/25.) That order states that if Defendant does not buyout Plaintiff by depositing \$747,000 with the Court then the property shall be "sold through private sale as the Court may further order." There is no indication from this order or the related briefing on determining the fair market value that Judge Devine decided that the property could be sold before making a finding regarding the right to have a petition and the parties' interests in the property. Thus, this Court can consider the issue now. Further, on September 19, 2025, the Court held a case management conference where Judge Devine set a "Further CMC re: trial setting conference" for March 5, 2026. (9/19/25 minute order.) Setting a trial setting conference also suggests that the Court contemplated making the necessary factual determinations before ordering the property sold.

The Court finds that it has not previously decided Plaintiff's right to partition the property and each sides interest in the property. Further, the Court has not previously decided whether it can proceed with the sale of property before making these determinations.

The Court now turns to the main question presented by this motion, namely whether the Court should order the sale of the property pursuant to Code of Civil Procedure sections 874.317 to 874.321 or if the Court should first determine whether Plaintiff has a right to partition the property and each parties' interests in the property pursuant to Code of Civil Procedure sections 872.710(a) and 872.720(a).

In 2022, the Uniform Partition of Heirs Property Act became effective in California. The following year the Heirs Act was amended to the Partition of Real Property Act and now applies to properties beyond those involving heirs.

Partition of Real Property Act (PRPA), states that “the property shall be partitioned under this chapter unless all of the cotenants otherwise agree... .” (Code of Civil Procedure section 874.313(a).) Further, “This chapter supplements the other provisions of this title and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.” (Code of Civil Procedure section 874.313(a).)

The PRPA provides a statutory scheme for determining the value of property, allowing cotenants the opportunity to purchase the property and encouraging partition in kind where such option is available. First, unless the parties agree on value, the court shall determine the fair market value of the property by using a disinterested real estate appraiser and holding a hearing on the matter. (Code of Civil Procedure section 874.316.) Next, after a determination by the court on the fair market value of the property, the court shall send a notice giving cotenants 45 days to elect to buyout the other cotenants. The purchase price is the value of the entire parcel multiplied by the cotenant’s fractional ownership of the entire parcel. (Code of Civil Procedure section 874.317.) If no cotenants elect to buy the property, the court proceeds to consider whether a partition in kind can be ordered. (Code of Civil Procedure sections 874.317(d)(3), 874.318.) The Court must order a partition in kind unless none of the cotenants request a partition in kind or the court has made a determination that a partition in kind will cause great prejudice to the cotenants. (Code of Civil Procedure sections 874.318, 817.319.) Where a partition by sale is ordered, the statute provides a process for sale, which is generally done as an open-market sale using a disinterested real estate broker. (Code of Civil Procedure sections 874.320, 874.321.)

Thus, the PRPA sets forth a statutory scheme for how a court should go through the process of partitioning a property. The PRPA does not address the timing for when the court must make determinations as to “whether the plaintiff has the right to partition” and a determination of “the interests of the parties in the property”. (Code of Civil Procedure sections 872.710(a), 872.720(a).)

There are no published opinions addressing the interplay between sections 872.710, et. seq. and 874.313 et seq. Thus, the Court must engage in statutory construction. Courts “begin as always with the statute’s actual words, the “most reliable indicator” of legislative intent, “assigning them their usual and ordinary meanings, and construing them in context.” (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 837-838 (*Even Zohar*).) When trying to harmonize sections 872.710, et seq. and 874.313, et seq. there are two useful principles of statutory construction. “First, “[a] court must, where reasonably possible, harmonize statutes, reconcile seeming inconsistencies in them, and construe them to give force and effect to all of their provisions. ...” [Citation.] Second, all “presumptions are against a repeal by implication” [Citation.], including partial repeals that occur when one statute implicitly limits another statute’s scope of operation [citation].” (*Even Zohar, supra*, 61 Cal.4th at 838.)

The Court is mindful that the PRPA states that it “shall control over any provisions of this title that are inconsistent”, but nothing in the PRPA addresses the procedures for determining whether a party has a right to partition in the first place and determining the parties’ interests in the property. Thus, under the rules of statutory construction, the Court will not find that the PRPA implicitly repealed the requirement that the Court must make determinations regarding a party’s right to a

partition and each parties' interests in the property.

The Court's interpretation is further supported by the assumptions within the PRPA. The PRPA assumes that the right to a partition and the parties' interests in the property have already been made. For example, Code of Civil Procedure section 874.317 allows a cotenant to buy out the other cotenants using the fair market value and cotenant's fractional ownership of the entire parcel. This section then assumes that the Court has already made a finding as to each parties' interest in the property. Without such a finding, a party would not know what they would have to pay to buy the other cotenants' interest in the property.

Further, case law is clear that the court needs to make these determinations before ordering a sale of the property. "[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition. (§ 872.720, subd. (a).) ... [T]he manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties' ownership interests are determined, but not before. (*Ibid.*)" (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) Nothing in the PRPA indicates that it was written to overrule cases like *Summers* or change the findings required before the court decides how to partition the property.

The Court finds that first the Court must determine the parties' right to a partition and the parties' interests in the property. Once those determinations have been made then the Court can proceed through the PRPA process to partition the property, assuming that the Court finds that Plaintiff has a right to petition the property.

9. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
HEARING ON SUMMARY MOTION ON FIRST, SECOND, THIRD AND FOURTH CLAIMS
FILED BY: SEENO, ALBERT D., JR.
TENTATIVE RULING:

Before the Court is Defendants Albert D. Seeno, Jr., Willow View Association, and Eden Valley Ranch LLC's Motion for Summary Judgment on First, Second, Third, and Fourth Claims.

As noted by Defendants, they have resolved their disputes with Plaintiff Albert D. Seeno III, and as such his "claims are not implicated in this Motion." The Motion instead only addresses Plaintiff David Seeno's claims. As the parties have the same surname, the Court will refer to them by their first names for clarity. The Court means no disrespect in doing so.

For the following reasons, the Motion for Summary Judgment is **DENIED**.

General Factual and Procedural Background

Through several trusts and an LLC, the parties have an ownership interest in property known as Eden Valley Ranch ("Ranch"). At all relevant times Defendant Albert D. Seeno Jr. ("ADSJ") has maintained control over the Ranch. For decades, David enjoyed unrestrained access to the Ranch, including being able to stay there for long periods of time. (David Seeno Decl. ¶ 2.) Over time, he accumulated

numerous personal possessions which he stored at the Ranch. (*Ibid.*) During that time, he believed that his personal property would remain there indefinitely. (*Ibid.*) His property included guns, taxidermized animals, vehicles, and other personal effects. (*Ibid.*)

In June 2024, ADSJ suspended David and his immediate family's use and access to the Ranch. (ADSJ Decl. ¶ 6.) After he was informed that he could no longer access the Ranch, David requested that his personal property be returned to him. (David Seeno Decl. ¶ 4.) Part of these requests included seeking access to the Ranch to identify, inventory, and remove his personal property. (*Ibid.*) These requests were denied and David has been continually barred from returning to the Ranch since that time. (*Id.* at ¶¶ 5-6; ADSJ Decl. ¶ 6.)

It is undisputed that David Seeno owns personal property which is still located at the Ranch. ADSJ acknowledges that he has "repeatedly offered through [his] counsel to return any personal property through various methods." (ADSJ Decl. ¶ 8.) The parties, however, have been at odds as to how to determine what specific personal property of David's is at the Ranch and how best to have that personal property returned to him.

The early communications between the parties' counsel included indications from ADSJ's team that any of David's personal property would be segregated and made available for return. (D's Exhibits 3-7.) There was a general agreement that such personal property would be returned to David. (*Ibid.*) The sticking point, however, remained the disagreement on how best to identify the specific property at issue. While the dispute appears to include a large variety of items, the three main categories at issue are (1) taxidermized animals, (2) vehicles, and (3) guns.

After litigation commenced, the discussions continued regarding identifying the personal property at issue. In addition, Plaintiff propounded discovery directed toward identifying this information. Defendants filed the instant MSJ on November 17, 2025.

In early December 2025, Plaintiff explained that he was unable to provide a "comprehensive list of all David's property" at the Ranch without receiving the outstanding discovery responses. (Harvey Decl. ¶ 2, Ex. B.) For example, they indicated that they still needed David's hunting records, which they noted were in Defendants' possession. (*Id.* at Exs. B-C.)

Nevertheless, David prepared a partial list of the missing property from his memory and "based on the limited information he" had at that time. (*Ibid.*) Three lists were provided: (1) a list of 46 (presumably taxidermized) animals with a general description and 'acquisition date'; (2) a list of three vehicles with year, make, vehicle type, model, and vin number; and (3) a list of 7 guns with a general description of the make. (*Id.* Exs. B-C.)

Defendants disputed the claim that David Seeno needed the discovery responses to oppose the MSJ and noted that they would like David to provide the serial numbers for the weapons. (*Ibid.*) David responded indicating that he did not have a list of the serial numbers for the guns but noted that they were "all located in David's bedroom at the Ranch (or at least they were the last time he was permitted to visit)." (*Ibid.*) Defendants continued to demand the serial numbers for the guns, as well as the vehicle (even though they were previously provided).

The discussions continued between the parties regarding discovery as well as procedures for David obtaining his personal property from the Ranch. (*Ibid.*) Defendants continued to reiterate that David and his family were not personally allowed on the Ranch, so other arrangements would need to be

made for the transfer of the property. (*Ibid.*) For example, Defendants indicated that they would deliver David's vehicles to the gate of the Ranch where David could take possession. (*Ibid.*) They claimed, however, that due to the single road going to the Ranch that it would require 'several weeks of perfect weather' to allow a truck/trailer to safely navigate the route. (*Ibid.*)

To date, it does not appear that David has been provided with any of this personal property from the Ranch.

As a result of the above, Plaintiffs filed a Complaint on October 14, 2023, alleging four causes of action: (1) conversion; (2) civil remedy for stolen goods; (3) replevin – personal property; and (4) injunctive relief. Plaintiffs sought a temporary restraining order restraining enjoining Defendants from interfering with Plaintiffs' access to their personal property located at the Ranch. That request was denied. Plaintiffs then sought a preliminary injunction seeking an order restraining and enjoining Defendants from interfering with Plaintiffs' ownership rights in their personal property, removal or transfer or Plaintiffs' right to possession of same. That request was also denied by the Court.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact." (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Summary judgment law in California "continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar*, 25 Cal.4th at 855.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence--as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.* emphasis added.)

Summary Judgment versus Summary Adjudication

Defendants' motion is styled as a "Motion for Summary **Judgment** on First, Second, Third, and Forth Claims." (emphasis added.) The notice of motion indicates that the Defendants "move for an order granting **summary judgment** on the claims identified below." (Notice at 2:2-5 emphasis added.) It continues by explaining that the "Motion is made under California Code of Civil Procedure §

437c(a)(1)....” (*Id.* at 2:5-7.) That section pertains to motions for summary judgment – and does not include summary adjudication. The Conclusion for the Motion ends by asking “that the Court grant summary **judgment** in their favor.” (Motion at 12:12 emphasis added.)

Section 437c(f) pertains to motions for summary adjudication which “may be made by itself of as an alternative to a motion for summary judgment....” (Code Civ. Proc. 437c (f)(2).) Here, as made clear above, Defendants only seek summary judgment. There is no reference or request for a motion for summary adjudication. “[A] court may not properly grant summary adjudication of issues when the notice of motion was only for summary judgment.” (*Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 532 citing *Gonzalez v. Superior Court* (1987) 189 Cal.App.3d 1542.)

“It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’” (*Gonzalez*, 189 Cal.App.3d at 1545 citations omitted.) “Only the grounds specified in the notice of motion may be considered by the trial court.” (*Ibid.*) “This rule has been held to be especially true in the case of motions for summary adjudication of issues.” (*Ibid.*)

As Defendants’ motion is limited to one for summary judgment, it can only be granted if Defendants show that “the action has no merit,” i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 [“Summary judgment is proper only if it disposes of the entire lawsuit.”])

Analysis

Conversion

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another. [Citation.] The basic elements of the tort are (1) the plaintiff’s ownership or right to possession of personal property; (2) the defendant’s disposition of the property in a manner that is inconsistent with the plaintiff’s property rights; and (3) resulting damages. [Citation.]” (*Regent Alliance Ltd. v. Rabizadeh* (2014) 231 Cal.App.4th 1177, 1181 quoting *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

“Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant’s good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Ibid.* quoting *Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.)

Defendants argue that David Seeno cannot establish that Defendants ‘wrongfully interfered with David’s possession of any personal property’ as ADSJ “offered return of any such property upon basic conditions that David has yet to fulfill.” (MSJ at 8:4-7.) Elsewhere, they claim that ADSJ “has not interfered with David’s possession *without justification*.” (MSJ at 8:18 italics added.)

To begin with, it is undisputed that David has numerous items of personal property left at the Ranch. He had a bedroom at a guesthouse located at the Ranch ‘for decades,’ where he stored his personal property. At the time, there was no indication that he would not be able to continue storing property there, nor that he would not be able to retrieve it whenever he needed.

As noted above, conversion is a strict liability tort. Whether or not ADSJ had a ‘justification’ for

preventing David Seeno access to his personal property is irrelevant. If David can show that Defendants have prevented him from taking possession of his personal property – he has established the elements of his conversion claim. The Court notes proving damages is still an issue, but that element was not discussed by the Parties.

The main dispute appears to revolve around Defendants' claim that David has failed to properly identify any of his personal property that is at the Ranch. It is true that in the early communications between the parties (including prior to suit being filed), David did not provide any itemized list or relatively detailed description of the property he was seeking to be returned.

On December 4, 2025, however, David's counsel sent a communication to Defendant's counsel which specifically identified fifty-four items of his personal property that David had prepared from memory. The letter explained that David provided as much detail as he could given that he was barred from accessing the Ranch, including records stored there, to give more detail. The list included three vehicles identified by vehicle type, year, make, model, and vehicle identification number. It also generally described seven of David's guns, e.g. "Marlin 22 mag cal rifle." A follow-up email further clarified that the guns were "all located in David's bedroom at the Ranch...."

Despite this list of property, including noting that some of it was in David's bedroom at the Ranch, Defendants refused to return the Property. Instead, they unilaterally determined that the descriptions were not complete enough, and they demanded additional details. David's counsel advised that some of the details would be included in records in the possession of Defendants, e.g. hunting records kept at the Ranch. As David did not have access to those records, and was being prevented from accessing them, they were being sought through discovery in the litigation. To date, David has not received full and complete responses to the discovery and has filed motions to compel to obtain the information he seeks. Those motions are still pending.

The above indicates that there are numerous disputed issues of material fact which require the Court to deny Defendants motion. First, Defendants' position that they do not have sufficient information to identify what personal property to which David is laying claim is disputed. While it may be better that David provide serial numbers for the guns, it is unclear that the descriptions of the guns – in tandem with the indication that they are located in David's old bedroom – is insufficient to properly describe the guns. A jury could reasonably conclude that the descriptions were sufficient.

In addition, it is the Defendants burden to "present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence...." (*Aguilar*, 25 Cal.4th at 855.) This can be done, for example, via "admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.* emphasis added.) As noted above, discovery is still ongoing. It is well within reason that David will be able to obtain the serial numbers either through written discovery, a more thorough review of his own records, or possibly a site inspection by his counsel. Defendants have not presented any of Plaintiff's discovery responses indicating that David admits he cannot identify the items he is claiming are his personal property. It appears that Defendants have not propounded any discovery at this time.

More specifically, it is undisputed that David very specifically identified the three vehicles at issue with as much specificity as possible – including VIN#s. Defendants do not argue that such items were not properly identified. In fact, the vehicles were not addressed in the opening papers. It is only in reply that Defendants indicate, after conceding that David's "ownership was not uncertain," that "Mr. Seeno agreed to return David's vehicles when weather permits," citing David's declaration. The cited

portion of David's declaration states:

[ADSJ] agreed in principle that my vehicles could be returned, but only through a unilateral process entirely under his control, on an unspecified date and subject to conditions determined solely by him. To date, no vehicles have been returned. (David Seeno Decl. ¶ 14.)

This statement makes clear that the vehicles have not been returned. It also confirms that there is no date certain when the vehicles will be returned. While citing to the above, Defendants dispute that the return of the vehicles is "subject to conditions determined solely by [Mr. Seeno]." (Reply at 6: fn 3.) They then cite a letter between counsel wherein Defendants counsel unilaterally states: "The collection process for these 3 vehicles will be as follows: [outlining procedure]." (Opp. Ex. F.) It is explained that delivering the vehicles "will require several weeks of perfect weather to allow a truck/trailer to safely traverse the mountain." (*Ibid.*)

There is a dispute as to whether the process imposed by Defendants is necessary. The inability to safely transport the vehicles is not listed as an undisputed material fact. Nor is there any evidence supporting this claim, other than the email explaining the procedure. While Defendants' counsel provides a declaration explaining that the private access road to the Ranch is long and inhospitable, it does not explain or support a finding that 'several weeks of perfect weather' are required before it can be used for this purpose.

Assuming for arguments sake that the process is the only feasible one, there is no admissible evidence that the conditions of the road have not been favorable at any time since December 4, 2025, when the three vehicles were identified. Whether the safe transfer of the vehicles could/should have occurred prior to now – and has not occurred due to Defendants' lack of diligence – is an issue of fact for a jury to decide.

Based on the above, Defendants have failed to meet their initial burden to show that there is no triable issue as to any material fact regarding the conversion cause of action. At a minimum, there are disputed facts regarding Defendants' failure to timely return David Seeno's vehicles. If there is a single issue of material fact in dispute a motion for summary judgment must be denied. (Code Civ. Proc. § 437c(c).)

Other Causes of Action

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the conversion cause of action, the Court need not analyze the other cause of action at issue. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **DENIED**.

10. 9:00 AM CASE NUMBER: C24-02065

CASE NAME: MARIA ADRIANO VS. ANGELA GERALDI

*HEARING ON MOTION IN RE: SUBSTITUTE EDWIN F. RIVERA IN PLACE OF DECEASED PLAINTIFF,
ANA MATILDE VASCONCELOS VDA DE SANCHEZ

FILED BY: ADRIANO, MARIA LUZ

TENTATIVE RULING:

Plaintiff ANA MATILDE VASCONCELOS VDA. DE SANCHEZ ("Decedent") by and through her successor-in-interest, EDWIN F. RIVERA ("Successor-in-Interest") filed a Motion to Substitute the Successor-in-Interest in place of the Decedent plaintiff as a party herein on or about September 24, 2025 (the "Motion to Substitute"). The Motion to Substitute was set for hearing on February 9, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Edwin F. Rivera filed as part of the Motion to Substitute, ¶¶2-7.

Disposition

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. Moving party to prepare the proposed form of order.

11. 9:00 AM CASE NUMBER: C24-02786

CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

*HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 3/12/25

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

Plaintiff Kristopher Bateman ("Plaintiff") filed two motions to quash subpoenas [(1) a Motion to Quash

Subpoenas Issued on March 12, 2025 (the “First Motion to Quash”) and (2) a Motion to Quash Subpoenas Issued on August 15 and 18, 2025 (the “Second Motion to Quash”)] on or about September 23, 2025 (collectively, the “Motions to Quash”). The Motions to Quash were set on February 9, 2026. The motions are opposed.

Background

Plaintiff sued various defendants, including defendant Modern China Cafe Inc (the “Cafe”) in its Complaint for Damages filed October 16, 2024. The Complaint alleges that the Cafe and others are liable for damages suffered by the Plaintiff stemming from an alleged assault that took place at the Modern China Cafe in Walnut Creek.

Motion to Quash Subpoenas Issued on March 12, 2025

The First Motion to Quash seeks an order quashing the subject subpoenas or, in the alternative, “modifying the March 12, 2025 subpoenas to restrict production to records of treatment concerning Plaintiff’s face and jaw for the five years preceding the May 28, 2024 incident to the present.”

Plaintiff also seeks an order “compelling Defendant to immediately destroy any medical records already obtained through these subpoenas that fall outside the permissible scope of discovery, and prohibiting any further use of such records.”

Finally, the motion seeks an order disqualifying MCC’s counsel due to the asserted “improper use of Plaintiff’s private medical records...”

The subpoenas at issue are five subpoenas to Plaintiff’s medical providers. See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash), ¶13. Plaintiff’s counsel served written objections taking issue with the scope of the categories of documents subpoenaed. *Id.* at **Exhibit 2**. Objections are broadly raised on grounds such as that the “the requests invade the Plaintiff’s constitutional right to privacy are impermissibly overbroad and irrelevant to the subject matter of this action in that it seeks disclosure of Plaintiff’s medical history that does not relate to the injuries which are the subject matter of this action...” *Id.*

Motion to Quash Subpoenas Issued on August 15 and 18, 2025

The Second Motion to Quash seeks similar orders but is addressed to four other records subpoenas issued to Plaintiff’s medical providers and others, including the Livermore City Police Department, the Contra Costa County Records Unit, and the San Jose Police Department. Declaration of Michael D. Herman filed September 25, 2025 (re Second Motion to Quash), ¶13 *et seq.* Similar objections were made by Plaintiff. *Id.* at **Exhibits 2 and 4**.

Analysis

Plaintiff failed to file Separate Statements in support of the Motions to Quash. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to “...quash the production of documents or tangible things at a deposition.” Rule 3.1345(a)(5) of the California Rules of Court (“CRC”); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5. For that reason, the motions are procedurally defective.

Even if not procedurally defective, Plaintiff’s meet and confer letters and the motion papers themselves fail to adequately address particular objections as to particular categories of subpoenaed documents.

Plaintiff asserts, broadly, the that subpoenas were “sweeping” and that “[e]ach subpoena requested ‘all’

of Plaintiff's medical records, images and diagnostics, communications with his providers, and billing documents." See First Motion to Quash, p. 2. Plaintiff asserts that "[t]he only limitation was a date restriction beginning January 1, 2018, with no restriction as to body part, condition, or relevance to the subject incident." *Id.*

On their face, those statements fail to precisely address the requests at issue. The proffered copies of the subject subpoenas contain varying requests, many of which contain more limited language, including as to the express time limitations. See e.g. Deposition Subpoenas for Production of Business Records dated March 12, 2025 (containing various limitations such as "...from 01/01/2020 to the present..." and "from 01/01/2018 to the present including,..."). See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash). Of course, the review of such particulars is hampered by Plaintiff's failure to file Separate Statements in support of the Motions to Quash.

Furthermore, Plaintiff could have taken steps earlier to seek a Protective Order to obtain an adjudication on the scope of the subpoenas, but failed to do so.

No "misuse of records outside the scope of discovery" is shown by any declaration with a showing of specific factual circumstances surrounding an improper use of subpoenaed records by anyone, much less the Cafe's attorneys. See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash), ¶16.

Disposition

The Court finds and orders as follows:

1. The Motions to Quash are DENIED.
2. In the exercise of its discretion, the Court, *sua sponte*, orders the parties to meet and confer, in good faith, **within thirty (30) days** regarding the scope of the subpoenaed records at issue in the Motions to Quash to address the following:
 - a. Whether any agreements may be reached regarding the scope of the requests, including the return or destruction of documents that the parties agree are beyond the scope of permissible discovery in relation to the claims at issue; and
 - b. Whether the matter may be resolved, in whole or in part, by stipulating to a Protective Order to protect the confidentiality of the documents and to govern their use and dissemination.
3. In meeting and conferring as set forth above, the parties are admonished to be mindful that, generally, all medical and/or psychological records that are related to the claimed injuries put at issue by the Plaintiff are discoverable. See Evid. Code §§ 996 and 1016; see also Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 8:305 *et seq.* Moreover, while relevant medical and/or psychological records may include records beyond treatment for the subject injuries, the parties should consider other reasonable limitations on the scope of the discovery such as a reasonable timeframe or limitations related to areas of the body, etc.
4. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C24-02786
CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

***HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 8/15/25 & 8/18/25**

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

See LINE 11 above.

13. 9:00 AM CASE NUMBER: C25-01189

CASE NAME: OLIVIA ALVAREZ VS. CITY OF BRENTWOOD

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF BRENTWOOD

TENTATIVE RULING:

Before the Court is Defendant City of Brentwood (“Defendants” or “Brentwood”)’s demurrer. The demurrer relates to Plaintiff Olivia Alvarez (“Plaintiff” or “Alvarez”)’s First Amended Complaint for (1) Race Discrimination (Disparate Impact), (2) Race Discrimination (Disparate Treatment), (3) Age Discrimination (Disparate Impact), (4) Age Discrimination (Disparate Treatment), (5) Hostile Work Environment Harassment, (6) Retaliation, (7) Retaliation for Exercising Rights Under CFRA, and (8) Failure to Prevent Discrimination, Harassment, and Retaliation.

Defendant demurs to Plaintiff’s First Amended Complaint pursuant to California Code of Civil Procedure § 430.10 on the grounds that Plaintiff’s complaint relies on factual allegations that are barred by the statute of limitations, and that Plaintiff’s First, Third, Fourth, Fifth, Sixth, and Eighth claims fail to state sufficient facts to constitute causes of action.

Plaintiff opposes Defendant’s demurrer on the grounds that it improperly attempts to resolve factual disputes, draw inferences against Plaintiff, and imposes evidentiary burdens wholly inappropriate at the pleading stage.

For the following reasons, Defendants’ demurrer to Plaintiff’s First Amended Complaint is **sustained with leave to amend in part and overruled in part**.

Any amended complaint shall be filed and served on or before February 20, 2026.

Factual Allegations and Background

This suit arises out of an employment dispute.

Olivia Alvarez is a woman of Hispanic/Latin American descent. (First Amended Complaint (“FAC”) at 3:5-6.) She was employed by the City of Brentwood as a Parks and Recreation Department Supervisor from December of 2000 until April 28, 2023, when she was terminated. (*Id.* at 3:4-6, 19:25.) Alvarez was 50 years old at the time of her termination. (*Id.* at 25:15-16.) Between 2000 and 2019 Brentwood consistently gave Alvarez positive annual performance evaluations that complimented her on her ability to work with others and her professionalism. (*Id.* at 4:22-28.)

In 2018 Kris Farro ("Farro"), a white woman, became Alvarez's manager. (FAC at 5:3-4.) Alvarez's former fiancé, Jose Juan Rodriguez ("Rodriguez"), a Latin American man, became a Brentwood City Councilmember in January 2019. (*Id.* at 5:7-10.) Shortly thereafter, Farro sought a meeting with Rodriguez and told Alvarez that Farro "would be 'leaning on' Alvarez to 'communicate/persuade/influence Council Member Rodriguez on items or decisions that may come up regarding the Parks and Recreation Department.'" (*Id.* at 5:11-15.) Alvarez told Farro this made her uncomfortable and she declined to get involved. (*Id.* at 5:15-21.) Farro appeared "visually upset" following Alvarez's refusal. (*Id.* at 5:20-21.)

In July of 2019, Amanda Chaney ("Chaney"), a white woman, was hired as a Senior Activity Coordinator and Alvarez's subordinate. (FAC at 5:22-24.) Chaney's chain-of-command was Alvarez, then Farro. (*Ibid.*)

In the fall of 2019, Farro met with Alvarez to talk about the fact that Farro had heard Rodriguez was interested in creating a teen center, but Farro expressed that she thought "Teen Centers were outdated and the community didn't need one." (FAC at 6:5-9.) Farro asked for Alvarez's help in persuading Rodriguez not to pursue creating a teen center; Alvarez declined. (*Id.* at 6:9-10.)

Beginning in October of 2019, Farro started to exclude Alvarez from meetings where Chaney was invited, including meetings where the topics of discussion directly related to Alvarez's job duties. (FAC at 6:11-15.)

In December of 2019, Alvarez received a positive performance evaluation, it would be the last evaluation she would receive during her employment with the City of Brentwood. (FAC at 6:16-18.)

In February of 2020, Alvarez met with Farro to discuss her exclusion from the meetings and some chain-of-command issues she was having with Chaney. (FAC at 6:19-20.) Alvarez communicated to Farro that Chaney had a habit of bypassing Alvarez when expressing frustrations with job duties and going straight to Farro. (*Id.* at 6:20-24.) Farro dismissed Alvarez's concerns and did not offer any feedback or suggestions on how to resolve these challenges. (*Id.* at 6:24-25.)

In March of 2020, Alvarez had a meeting with Chaney to discuss her "behaviors" and to request that if Chaney had a problem, that Chaney address it first with Alvarez before reporting it to Farro so that Alvarez might be afforded an opportunity to resolve the issue first herself. (FAC at 6:27-7:2.)

Sometime between April and May of 2020, Farro approached Alvarez asking her to give Rodriguez Farro's personal phone number to coordinate a meeting between Farro and Rodriguez. (FAC at 7:7-11.) Alvarez agreed to do so, believing she was only the messenger. (*Id.* at 7:10-11.) Farro did not advise Alvarez of the nature of the meeting. (*Ibid.*)

In late May, Farro emailed Rodriguez requesting a meeting and she asked Alvarez to attend. (FAC at 7:12-15.) Farro told Alvarez she planned to persuade Rodriguez to install the planned teen center in a different building than initially planned with the goal of clearing the way for a senior center, which she deemed more important, to instead be housed in the location Rodriguez wanted for his teen center. (*Id.* at 7:15-20.) Alvarez declined to attend the meeting on the basis that she disagreed with

Farro's motive and felt Farro only wanted her to attend in the hopes that her presence would influence Rodriguez. (*Id.* at 7:20-22.) Farro again appeared "visibly upset" at being rebuffed. (*Ibid.*) Farro subsequently told Alvarez the meeting with Rodriguez went poorly and she asked Alvarez to speak to Rodriguez herself to "get him to change his mind." (*Id.* at 7:23-26.) Alvarez declined. (*Ibid.*)

In early June of 2020, Alvarez submitted Chaney's one-year evaluation to Farro. (FAC at 8:3-6.) Alvarez, in her evaluation, recommended placing Chaney on a performance improvement plan ("PIP"). (*Id.* at 8:6-7.) Farro refused to approve the PIP and demanded that Alvarez alter the evaluation before sending it on to Parks and Recreation Director Bruce Mulder, a white man. (*Id.* at 8:8-14.) Alvarez initially refused to alter her evaluation but ultimately relented. (*Id.* at 8:8-16)

On September 8, 2020, Alvarez became sick and began using accrued sick leave. (FAC at 8:27-28.) On September 24, 2020, she tested positive for COVID-19; she immediately reported this result to Farro and HR. (*Id.* at 9:11-12, 14-15.) HR advised her that she could not work from home while quarantining. (*Id.* at 9:15-16.)

Farro, who left for a vacation in late September, returned October 5, 2020, and was advised by Chaney and Recreation Supervisor Stacey Dempsey, a white woman, that Alvarez had been working while on FMLA leave. (*Id.* at 9:10, 9:18-23.)

Alvarez's complaint is unclear as to this point as it first states "In or between September 24, 2020, and October 19, 2020, ALVAREZ was on COVID-19 related FMLA leave and/or paid sick leave, quarantining at home." (*Id.* at 9:18-19.) One line later, the complaint reads as follows:

On or about October 5, 2020, Ms. Farro returned from vacation.
Upon Ms. Farro's return, Ms. Chaney and Recreation Supervisor Stacy
Dempsey (White/European American female) informed Ms. Farro
that ALVAREZ was working while on COVID-19 FMLA leave—even
though ALVAREZ was not on COVID-19 FMLA leave.

(FAC at 9:20-23 (emphasis added).)

On October 7, 2020, Farro disconnected Alvarez's access to the Brentwood network, ensuring Alvarez could not work from home. (FAC at 9:24-26.) On October 8, 2020, Farro sent Alvarez a text message advising her that she should not be working. (*Id.* at 10:1-3.) Alvarez replied that she was not working, merely "fielding calls in order to refer contacts back to either Ms. Farro or Ms. Chaney." (*Ibid.*) The same day, Alvarez contacted HR asking "how to distribute a time-sensitive, urgent email with instruction regarding ongoing programming" while she was out on leave; HR Officer Ashley Sosa, a white woman, referred her back to Farro. (*Id.* at 10:4-7.) When Alvarez contacted Farro on the matter, Farro told her she "felt like she should just hang up" since Alvarez was on leave. (*Id.* at 10:7-9.)

On October 9, 2020, Pat Wilkins, a volunteer for a Brentwood city event who was also a personal friend of Alvarez's, called Alvarez about issues related to the event. (FAC at 10:10-12.) Alvarez explained that she was on leave and referred the volunteer to Chaney; the two then spoke of other

topics unrelated to Alvarez's job. (*Id.* at 10:12-15.) Wilkins subsequently contacted Chaney telling her Alvarez had directed her to discuss the work-related topics with Chaney. (*Id.* at 10:16-18.)

Alvarez was still on leave on October 15, 2020, when she was contacted by Farro and Recreation Manager Denise Del Prado, a white woman, and informed that she was being written up for insubordination for working while on COVID-19-related FMLA leave and/or paid sick leave. (FAC at 10:18-21.) Farro told her that her phone call with Wilkins qualified as "working" in violation of City Policy. (*Id.* at 23:25.)

On October 19, 2020, Alvarez was cleared to return to in-office work. (FAC at 11:3.) One week later Chaney informed Alvarez that Alvarez was under investigation for working while on leave and that Farro directed Chaney to file a report against Alvarez. (*Id.* at 11:8-10.) Another employee, Diva Santiago, a Filipina woman, also informed Alvarez that Farro told her Alvarez was under investigation and that Santiago was not to speak with Alvarez. (*Id.* at 11:10-12.) Farro warned Santiago that if she spoke with Alvarez, Farro would subpoena Santiago's phone records to uncover any communications between her and Alvarez. (*Id.* at 11:12-15.)

When Alvarez asked Farro about the investigation, Farro directed her to HR. (FAC at 11:28-12:3.) Both HR Director Sukari Beshears, a Black woman, and the Bargaining Unit President disclaimed knowledge of any such investigation. (*Id.* at 11:15-17.) Farro sent an email to all employees asking for any emails, phone calls, and text messages that would prove Alvarez had been working while on leave. (FAC at 11:20-22.)

On December 7, 2020, Alvarez filed a formal complaint with HR against Farro for Farro's "discriminatory behaviors and actions." (FAC at 11:7-8.) After initiating the complaint, Farro refused to speak to Alvarez and Chaney became hostile and passive aggressive toward Alvarez. (*Id.* at 12:7-9.)

Over the four months that followed, Alvarez periodically asked HR Director Beshears for updates regarding her complaint and requested mediation to resolve the conflict; Alvarez found Beshears unresponsive. (FAC at 12:14-17.)

Alvarez's mother-in-law's health began to rapidly decline because of cancer in March of 2021, and Alvarez sought FMLA leave, providing HR with an FMLA request form and a doctor's note (1) identifying Alvarez as her mother-in-law's primary caregiver, and (2) stating that Alvarez needed time off under FMLA to care for her mother-in-law. (FAC at 12: 24-27.) HR denied the request, asserting that Alvarez would need to prove that her mother-in-law raised her since childhood to qualify for FMLA leave. (*Id.* at 12:27-13:1.)

In April of 2021, HR Director Beshears reported that Alvarez's December 7 complaint was found to be unsubstantiated; Alvarez again requested mediation to resolve the conflict. (FAC at 13:2-5.) In May of 2021, HR provided a mediator to "improve open communication, trust, and team building." (*Id.* at 13:6-9.) Farro objected to working with the mediator and the mediator's contract was terminated within a month. (*Id.* at 13:10-14.)

On July 4, Alvarez asked Director Mulder and HR Director Beshears to assign her a new supervisor; her

request was denied. (*Id.* at 14:13-15.) Alvarez filed a second HR complaint on July 21, 2021, alleging continued discriminatory and retaliatory actions from Farro and she further alleged that HR had failed to rectify or improve the situation. (FAC 15:5-9.) She again requested to switch managers due to a hostile work environment. (*Ibid.*)

On December 7, 2021, after a City event wherein Alvarez made the decision to seek the help of part-time staff for tasks related to the event, Chaney became angry upon hearing of Alvarez's delegation. (FAC at 15:27-16:2.) Chaney began shouting at Alvarez because she said Alvarez "had no right to give her work away." (*Id.* at 16:2-5.) Alvarez reported the incident to Director Mulder and "further complained that Ms. Chaney's behavior in the department makes ALVAREZ's job twice as difficult as co-workers refused to work with Ms. Chaney." (*Id.* at 16:8-10.) Alvarez alleges that Director Mulder did not investigate these claims. (*Ibid.*)

In January of 2022, Alvarez went to HR about her issues with Chaney's "poor attitude, lack of respect, and lack of professionalism toward Alvarez." (FAC at 13-15.) HR Director Beshears did not follow up. (*Ibid.*) That same month Alvarez was supposed to conduct a six-month evaluation of Chaney; Farro, after seeing Alvarez had included a PIP, required Alvarez to change the evaluation. (*Id.* at 16:17-21.) When she refused to change the evaluation, Farro requested that Director Mulder remove Chaney from Alvarez's supervision as Chaney had asked to be moved "due to the unhealthy work relationship with ALVAREZ." (*Id.* at 16:21-24.)

In February 2022, Alvarez was assigned Thomas Freedman, a white man, to take the place of Chaney as her subordinate coordinator. (FAC at 17:1-3.) Alvarez objected to the assignment because Freedman had no experience in Parks and Recreation, Senior Adult Programming and had previously been the Sports Program Coordinator. (*Id.* at 17: 1.4.) Her concerns were ignored by Director Mulder. (*Id.* at 17:4.)

Between May and July of 2022, Alvarez "received dozens of complaints" from other staff, collaborating agencies, facilities renters, and senior participants, claiming that they believed Freedman was "sabotaging ALVAREZ's work with the Senior Center." (FAC at 17:13-16.) Alvarez brought these complaints to the attention of Farro and Director Mulder requesting that they transfer Freedman and place him on a PIP, both of which were denied. (*Id.* at 17:16-18.) As a result, tension between Alvarez and Freedman increased and ultimately "resulted in Mr. Freedman verbally assaulting ALVAREZ." (*Id.* at 17:18-20.) He was never held accountable for his conduct. (*Ibid.*)

In July of 2022, after Alvarez informed Director Mulder that a local café that collaborated with the City's Senior Center was terminating its relationship with the Senior Center because of Freedman's conduct, Alvarez again asked that Freedman be transferred; this time Director Mulder agreed. (FAC at 17:21-23.) In transferring Freedman, however, Director Mulder failed to replace him for six months, significantly increasing Alvarez's workload. (*Id.* at 17:24-26.)

Later that month, HR Director Beshears informed Alvarez that she was under investigation, though she did not elaborate on the basis for the investigation. (FAC at 18:2-5.) Farro resigned from her

position in mid-July of 2022. (*Id.* at 17:27-28, 18:1.)

In August of 2022, Alvarez attended an investigative interview, wherein she learned that Chaney had filed a complaint against her alleging 29 counts of retaliation. (*Id.* at 18:6-8.) At the interview Chaney was allowed to present witnesses while Alvarez was not allowed to present witnesses or refute any of Chaney's claims. (*Id.* at 18:9-11.)

From September of 2022 to November of 2022, Alvarez suffered from stress and anxiety stemming from Defendant's "discrimination, harassment, retaliation, and the overall hostile work environment." (FAC at 18:12-14.)

On December 7, 2022, Alvarez was placed on administrative leave on the basis that "'the City was in the process of evaluating issues relating to [her] performance' and 'that this action [was] not disciplinary.'" (FAC at 18:18-20.)

Alvarez received a notice of intent of discipline for termination from Director Mulder on January 28, 2023. (FAC at 18:27-28.) After a March 9, 2023, *Skelly* hearing, Brentwood moved ahead with Alvarez's termination on April 28, 2023. (*Id.* at 19:11-14.)

Alvarez filed a complaint with the California Civil Rights Department ("CRD") on April 28, 2025, and she was issued a notice of case closure and a right-to-sue letter the same day. (FAC at 20:21-24.) She filed suit in this case on April 28, 2025.

Meet-and-Confer Efforts

Pursuant to California Code of Civil Procedure § 430.41, parties shall meet and confer at least five days before the date the responsive pleading is due, and if they are not able to do so, the demurring party shall be granted an automatic 30-day extension to file a responsive pleading. (Code Civ. Proc., § 430.41.) The defendant must answer an amended complaint within 30 days after service. (Code Civ. Proc., § 471.5.)

Here, Defendant's counsel's efforts to meet and confer before filing this demurrer were insufficient. Counsel failed to engage in such efforts "in person, by telephone, or by video conference." (Code Civ. Proc., §430.41(a).)

Plaintiff filed her First Amended Complaint on August 1, 2025. Defendant's counsel sent a meet-and-confer letter to Plaintiff's Counsel on August 27, 2025. With the Labor Day holiday, Defendant's responsive pleading was due September 2, 2025. On August 29, Defendant's counsel filed a declaration with the court stating that meet-and-confer efforts had failed after just two days, entitling Defendant an automatic 30-day extension. California Code of Civil Procedure section 430.41 requires that a "good faith attempt to meet and confer was made."

Failure to meet and confer in compliance with the statute, however, is not a permissible basis for either sustaining or overruling a demurrer. Given the improbability that meeting and conferring in the correct format would change the results here, the Court proceeds with its ruling.

Legal Standard

Demurrer

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

Statute of Limitations

Before seeking judicial relief, an employee must exhaust FEHA’s administrative remedy by filing an administrative complaint with the California Civil Rights Department (“CRD”) within three years of the unlawful conduct identified under FEHA and obtaining a “right-to-sue” letter from the agency. (Gov. Code, § 12960(e)(5); *Martin v. Lockheed Missiles & Space Co.* (1994) 29 Cal.App.4th 1718, 1724; *Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1120-1121; *Rojo v. Kliger* (1990) 52 Cal.3d 65, 83.) Once the CRD issues a right-to-sue letter, a complainant has one year to file a civil suit. (Gov. Code, § 12965(b).)

Here, Alvarez filed a CRD complaint and the agency issued her a right-to-sue letter on April 28, 2025 (FAC at 20:21-24.) She initiated this lawsuit the same day. (*Ibid.*) Accordingly, the conduct occurring before April 28, 2022, falls outside the limitations period.

The alleged adverse employment actions that landed within the statutory period include: (1) Defendant initiated a formal investigation into Plaintiff (July of 2022), (2) Defendant placed Plaintiff on administrative leave (December 7, 2022), and (3) Defendant terminated Plaintiff (April 28, 2023). Other alleged events during this period (e.g. a “verbal assault,” staffing support issues, or investigative procedures) are not, standing alone, discrete adverse employment actions for the purposes of the statute of limitations analysis.

To the extent that Plaintiff relies on conduct occurring before April 28, 2022, such as earlier staffing decisions, performance-related disputes, and the handling of internal complaints, those acts fall outside the limitations period and cannot independently support liability.

Plaintiff, however, alleges a hostile work environment and invokes a continuing violation theory. A continuing violation is an equitable exception to the three-year period of limitation under FEHA. An employer’s discriminatory conduct qualifies as a continuing violation if its actions are (1) sufficiently similar in kind (like or related) to conduct that occurred within the violations period, (2) have occurred

with reasonable frequency, and (3) have not acquired a degree of permanence. (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 823; *Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1402.) “Permanence” is defined as when an employer’s statements and actions make it clear to a reasonable employee that future efforts at informal conciliation will be futile. (*Ibid.*)

The continuing violation doctrine applies primarily to ongoing harassment or a persistent hostile work environment, however, not discrete personnel management actions, which are different in kind. (*AMTRAK v. Morgan* (2002) 536 U.S. 101, 115 (overruled by statute on other grounds).) Time-barred discriminatory acts are not actionable, even when they relate to acts alleged in timely filed charges. (*Id.* at 113.)

Hostile environment claims ... by their very nature involve repeated conduct. ... The “unlawful employment practice” therefore cannot be said to occur on any particular day. It occurs over a series of days or perhaps years and, in direct contrast to discrete acts, a single act of harassment may not be actionable on its own.

(*AMTRAK, supra*, 536 U.S. at 115.)

Common personnel management actions include “hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like...” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65.)

The First Amended Complaint’s pre-2022 allegations concern personnel management actions – including investigations, discipline, staffing decisions, and performance-related disputes – which courts classify as discrete employment decisions rather than ongoing harassment. Accordingly, Plaintiff fails to demonstrate a continuing violation.

I. Race Discrimination and Age Discrimination – Disparate Impact

California’s Fair Employment and Housing Act (“FEHA”) holds that it is an unlawful employment practice to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on race or age. (Gov. Code, § 12940(a), Gov. Code § 12926(b); § 12926(o).)

Under FEHA, “age” is the chronological age of a person who has reached a 40th birthday. (Gov. Code § 12926(b).) FEHA defines “employer” as “any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...” (Cal Gov Code § 12926(d).)

In her complaint, a plaintiff must plead the essential facts of the case with particularity sufficient to acquaint a defendant with the nature, source and extent of the FEHA cause of action. (*Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 382.)

“Because of the similarity between state and federal employment discrimination laws, California

courts look to pertinent federal precedent when applying our own statutes.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354.)

To establish a disparate impact claim under FEHA a plaintiff must establish that the defendant’s facially neutral employment policy or practice causes a disproportionate adverse impact on members of a protected class, not merely on the plaintiff individually. (See *Guz v. Bechtel Nat’l, Inc.* (2000) 24 Cal.4th 317, 354; *Villafana v. County of San Diego* (2020) 57 Cal.App.5th 1012, 1017.) “[T]he mere fact that each person affected by a practice or policy is also a member of a protected group does not establish a disparate impact.” (*Villafana, supra*, 57 Cal.App.5th at 1017.)

[A] plaintiff must allege and prove, usually through statistical disparities, that facially neutral employment practices adopted without a deliberately discriminatory motive nevertheless have such significant adverse effects on protected groups that they are in operation ... functionally equivalent to intentional discrimination.

(*Carroll v. City and County of San Francisco* (2025) 115 Cal.App.5th 1192, 1213 (nested quotations omitted).)

A disparate impact claim does not challenge isolated employment decisions, but rather specific employment policy or practice that allegedly produces a group-based disparity. (*Darensburg v. Metro. Transp. Comm’n* (9th Cir. 2011) 636 F.3d 511, 519.) The appropriate comparison is between groups to whom the facially neutral policy has been or can be applied. (*Villafana, supra*, 57 Cal.App.5th at 1018.)

Here, Alvarez’s amended complaint does not identify any specific facially neutral employment practice or policy (before or after April 28, 2022) that allegedly produced a disparate impact on members of either of her protected classes (Hispanic/Latin American or Age). Although her complaint alleges investigations, staffing decisions, and disciplinary actions, these are described as individualized personnel decisions rather than an identified employment policy. A disparate impact claim requires identification of a particular employment practice or policy, and, here, none is identified. (*Darensburg v. Metro. Transp. Comm’n* (9th Cir. 2011) 636 F.3d 511, 519; *Villafana, supra*, 57 Cal.App.5th at 1018.)

The amended complaint also fails to allege facts showing a group-based disparity, the allegations focus exclusively on Alvarez’s own treatment by Defendant and do not allege how the challenged practices impacted other Hispanic/Latin American or older employees. A disparate impact claim requires allegations of disproportionate adverse effect on the protected group as a whole, not merely on the plaintiff individually. (*Guz v. Bechtel Nat’l, Inc., supra*, 24 Cal.4th at 354; *Villafana, supra*, 57 Cal.App.5th at 1017.)

Alvarez in her complaint also does not allege statistical disparities, comparator facts, or other factual allegations from which group-level disproportionate impact could be inferred. (*Carroll, supra*, 115 Cal.App.5th at 1213.) The absence of such allegations is fatal to a disparate impact claim. (*Villafana, supra*, 57 Cal.App.5th at 1018; *Carroll, supra*, 115 Cal.App.5th at 1213.)

Instead, Alvarez alleges that Brentwood's actions adversely affected Alvarez personally. Such allegations potentially describe disparate treatment, but not disparate impact. (*Guz v. Bechtel Nat'l, Inc.*, *supra*, 24 Cal.4th at 354; *Villafana*, *supra*, 57 Cal.App.5th at 1018.)

Accordingly, Plaintiff's First Amended Complaint fails to state a claim for her first cause of action for race discrimination under a disparate impact theory or her third cause of action for age discrimination under a disparate impact theory; the demurrer is sustained as to both causes of action with leave to amend.

II. Age Discrimination (Disparate Treatment)

To establish a claim for discrimination, a plaintiff must show "that (1) [the plaintiff] was a member of a protected class, (2) [the plaintiff] was qualified for the position [they] sought or was performing competently in the position [they] held, (3) [the plaintiff] suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (*Guz*, *supra*, 24 Cal.4th at 355.)

Alvarez alleged in her First Amended Complaint that she was 50 years old at the time of her termination. (FAC at 25:15-16.) Alvarez alleged she received positive performance evaluation from 2000 when she was hired up until 2019. (FAC at 4:22-28.) The relevant adverse employment actions were as follows: (1) the City initiated a formal investigation into Alvarez (July of 2022), (2) the City placed Alvarez on administrative leave (December 7, 2022), and (3) the City terminated Alvarez's employment (April 28, 2023). (FAC at 18:2-5, 18:18-20, 19:11-14.)

Plaintiff's complaint, however, does not allege nonconclusory facts supporting an inference that the adverse actions were motivated by her age. She does not allege age-related remarks, age-based stereotypes, replacement by a substantially younger employee, or facts showing that similarly situated younger employees were treated more favorably. Instead, the allegations concern investigations, workplace disputes, and personnel decisions without any factual connection to age. Conclusory assertions that actions were taken "because of age" without supporting facts, are insufficient at the pleading stage.

Accordingly, the demurrer to Plaintiff's fourth cause of action for age discrimination disparate treatment is sustained with leave to amend.

III. Hostile Work Environment Harassment

It is a violation of FEHA for an employer to engage in or permit harassment of an employee in the workplace. (Govt. Code § 12940(j)(1).)

California Jury Instructions No. 2521a describes the essential factual elements that a plaintiff must allege to state a claim for harassment: (1) that Plaintiff was an employee of Defendant's; (2) that she was subjected to unwanted harassing conduct because of protected characteristic or combination of characteristics; (3) that the harassing conduct was severe or pervasive; (4) that a reasonable person in Plaintiff's circumstances would have considered the work environment to be hostile or abusive; (5)

that Plaintiff considered the work environment to be hostile or abusive; (6) that a supervisor engaged in the conduct, or that Defendant's supervisors or agents knew or should have known of the conduct, and failed to take immediate and appropriate corrective action; (7) that Plaintiff was harmed; and (8) that the conduct was a substantial factor in causing Plaintiff's harm.

Discrimination and harassment are in separate categories under FEHA; "discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace." (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer's business or performance of the supervisory employee's job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Here, even assuming *arguendo* that the pre-April 28, 2022, challenged conduct is considered a continuing violation, Plaintiff's First Amended Complaint alleges investigations, disciplinary scrutiny, staffing disputes, administrative leave, and termination. These are personnel management actions, which, as a matter of law, do not constitute harassment under FEHA, even if allegedly unfair or motivated by animus. (*Roby, supra*, 47 Cal.4th at 707; *Janken, supra*, 46 Cal.App.4th at 63.) Alvarez's amended complaint does not allege conduct involving bias-motivated hostility, ridicule, or insult tied to her protected statuses.

Accordingly, Plaintiff fails to state a claim for hostile work environment harassment and the demurrer to her fifth cause of action is sustained with leave to amend.

IV. Retaliation

FEHA prohibits an employer from discharging or otherwise discriminating against any employee because the employee opposed any practices forbidden under FEHA or because the person filed a complaint, testified, or assisted in any proceeding under FEHA. (Gov. Code § 12940(h)). An employee's conduct also constitutes protected activity for purposes of the anti-retaliation provision of FEHA when the employee opposes conduct that the employee reasonably believes to be discriminatory. (Gov. Code. § 12940(h); *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

To state a claim for retaliation under FEHA, a plaintiff must allege (1) she engaged in protected activity, (2) she was subjected to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.)

The determination as to what constitutes a protected activity is inherently fact driven. (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652 (superseded by statute on other grounds).) The causal link may be established by an inference derived from circumstantial evidence. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.)

Evidence that the employer was aware that the plaintiff had engaged in the protected activity and that the adverse employment action followed within a relatively short time thereafter will support an

inference that the action was retaliatory and is central to finding a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69-70; *Rope, supra*, 220 Cal.App.4th at 653.)

In the retaliation context, an adverse employment action is one “that materially affects the terms, conditions, or privileges of employment.” (*Yanowitz, supra*, 36 Cal.4th at 1051.)

Here, among the retaliatory adverse employment actions within the limitation period are: (1) Defendant failing to hold Freedman accountable for “verbally assault[ing]” Alvarez (July 2022), (2) Defendant increasing Alvarez’s workload by failing to replace her subordinate for six months after transferring Freedman (July 2022), (3) Defendant initiating an investigation into Alvarez (July 2022), (3) at Defendant’s investigative interview, allowing Chaney to present witnesses while not allowing Alvarez to present witnesses or refute any of Chaney’s claims, , (4) Defendant placing Alvarez on administrative leave (December 7, 2022) and (5) Defendant terminating Alvarez (April 28, 2023).

Plaintiff alleges she filed two formal complaints with HR alleging discriminatory and retaliatory treatment as well as differential treatment tied to protected characteristics. (FAC at 11:7-8, 15:5-9.) Plaintiff’s two formal complaints were filed outside the limitations period because they occurred before April 28, 2022, however, although they are time-barred as independent bases for liability, these complaints may be considered as background evidence in support of her timely retaliation claim. (*AMTRAK, supra*, 536 U.S. at 113; *United Air Lines v. Evans* (1977) 431 U.S. 553, 558.)

Accordingly, the complaint sufficiently alleges that Plaintiff engaged in protected activity under FEHA, which includes opposing conduct reasonably believed to violate FEHA or filing internal complaints regarding discrimination or harassment. (Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042-1044.)

The complaint also sufficiently alleges adverse employment actions that materially affected the terms, conditions, or privileges of her employment or were reasonably likely to deter protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1051, 1054.) These allegations adequately plead adverse actions.

Finally, the First Amended Complaint alleges facts sufficient to support an inference of causal connection. Causation may be shown circumstantially, including by temporal proximity or by a pattern of antagonism following protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1046; *Morgan, supra*, 88 Cal.App.4th at 69.)

Immediately after Alvarez filed a formal complaint against Farro in December of 2020, Farro refused to speak to Alvarez and Chaney became hostile and passive aggressive toward Alvarez. (FAC at 11:7-8, 12:7-9.)

When Alvarez filed her second HR complaint alleging continued discriminatory and retaliatory actions from Farro and requested to switch managers for the second time, due to a hostile work environment, she was denied. (FAC at 15:5-9.) She faced insubordination from subordinates that Defendant failed to investigate. (FAC at 16:8-10, 13-15, 17:1-4, 13-20.) She faced removal of support staff for six months that significantly increased her workload. (FAC 17:21-16.) She was subject to

investigation, increased scrutiny, and ultimately administrative leave and termination. FAC at 15:5-9, 18:2-5.)

The complaint alleges that following Alvarez's complaints she faced a pattern of antagonism – scrutiny intensified, an investigation was initiated, she was placed on administrative leave, and her employment was terminated. At the demurrer stage, the Court does not weight competing inferences, and these allegations are sufficient to plead causation.

Accordingly, Plaintiff has stated a claim for retaliation under Government Code section 12940(h), and the demurrer to her sixth cause of action is overruled.

V. Failure to Prevent Retaliation/Failure to Prevent Discrimination

FEHA prohibits an employer from failing to "take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940(k). "Prompt investigation of a discrimination claim is a necessary step by which an employer meets its obligation to ensure a discrimination-free work environment." (*Northrop Grumman Corp. v. Workers' Comp. Appeals Bd.* (2002) 103 Cal.App.4th 1021, 1035.)

FEHA claims for failure to prevent retaliation and failure to prevent discrimination are derivative; if the employee has not established discrimination, harassment, or retaliation, the failure-to-prevent claim necessarily fails. (*Carter v. California Dept. of Veterans Affairs* (2006) 38 Cal.4th 914, 925, fn. 4; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289; *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1309.)

Here, while the Court finds that Plaintiff did not sufficiently state claims for her third and fourth causes of action for age discrimination (disparate treatment/disparate impact) or her fifth cause of action for hostile work environment harassment, Defendant does not demur to Plaintiff's second cause of action for race discrimination (disparate treatment) or her seventh cause of action for retaliation for exercising rights under CFRA, and the Court finds Plaintiff has sufficiently stated a claim for FEHA retaliation. Because viable underlying FEHA theories remain, Plaintiff's derivative claim for failure to prevent discrimination and retaliation may proceed. (*Carter, supra*, 38 Cal.4th at 925, fn. 4.)

Accordingly, Plaintiff has sufficiently stated a claim for failure-to-prevent retaliation under Government Code section 12940(k), and the demurrer to her eighth cause of action is overruled.

Conclusion

For the foregoing reasons, Defendant's demurrer as to Plaintiff's first, third, fourth, and fifth causes of action is sustained with leave to amend, and Defendant's demurrer to Plaintiff's sixth and eighth causes of action is overruled.

14. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/11/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

15. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/16/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

16. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

**HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:**

***TENTATIVE RULING**

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint is sustained with leave to amend.

The operative cross-complaint fails to state facts sufficient to constitute a viable cause of action against EBMUD.

Because Hacienda has requested leave to amend, leave is granted to permit Hacienda to attempt to plead a timely and otherwise cognizable cause of action against EBMUD, if it can do so.

EBMUD shall prepare the order and serve and file notice of its entry.

Hacienda shall file and serve any amended cross-complaint within 20 days after service of notice of entry of order.

17. 9:00 AM CASE NUMBER: N23-2108
CASE NAME: GLEN STEWART VS. SUPERIOR COURT OF CALIFORNIA, COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: REQUEST FOR JUDICIAL NOTICE**
FILED BY: STEWART, GLEN
TENTATIVE RULING:

Plaintiff Glen Stewart ("Plaintiff") filed a Motion for Request for Judicial Notice on October 20, 2025 (the "Request for Judicial Notice"). The motion was set for hearing on February 9, 2026.

Analysis

The Request for Judicial Notice requests the Court take judicial notice of certain factual matters described in the motion and various attached exhibits:

1. My on-call work as a pathologist for Contra Costa County was a routine/basic assigned/required duty of the job. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and payroll services. An email from the Director of Payroll Services to CCCERA states that pathologists are mandated to be on-call because of the nature of their specialty. Also my job offer letter states that on-call work is part of my regular work week.
See Appendix A.

2. During my on-call work as a pathologist for Contra Costa County, I was working as the Laboratory Director for the clinical laboratory at Contra Costa Regional Medical Center (CCRMC). The clinical laboratory at CCRMC is open 24 hours. California Code of Regulations state that when an acute care hospital, such as the hospital at CCRMC, is open, a physician shall have overall responsibility for the clinical laboratory service and be on duty or on call at all times, and that physician shall be a Board Certified Pathologist. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and all clinical laboratory staff.
See Appendix B.

See Request for Judicial Notice, p. 2.

These matters are not the proper subject of either mandatory or permissive judicial notice. Evid. Code §§ 452 and 453; see Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 9:54.

Disposition

The Court finds and rules as follows:

1. The Request for Judicial Notice is DENIED.
2. The Court shall enter the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1896

CASE NAME: CLAIM OF: JERRY BURNS, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Petitioner Jerry Burns Sr ("Plaintiff") filed a Petition for Approval of Compromise on or about September 25, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 9, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of orders lodged with the moving papers.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-01137

CASE NAME: BRAYAN RUBIO VS. HATEM AHMED

***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF
CLAUDIA RUBIO AT DEPOSITION AND PRODUCTION OF RECORDS**

FILED BY: USEN, IME I

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed February 5, 2026 by defendant IME I. USEN ("Defendant"), the Motion to Compel Attendance and Testimony filed September 19, 2025 and scheduled for hearing on February 23, 2026 is DROPPED from calendar and the hearing date VACATED.

20. 9:01 AM CASE NUMBER: C23-00655
CASE NAME: MICHAEL ROLANDELLI VS. CSAA INSURANCE EXCHANGE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION AND DOCUMENTS OF
CSAA CLAIMS MANAGERS ZACHARY GORDON AND JENNIFER WOLF
FILED BY: ROLANDELLI, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Rolandelli ("Plaintiff") filed a Motion to Compel Further Deposition and Documents on September 30, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on February 9, 2026. The motion is opposed.

Background

Plaintiff noticed the deposition of Zachary Gordon, the "National Homeowners Claims Executive" with defendant CSAA Insurance Exchange ("CSAA"). See Declaration of Nicholas J. Peterson filed September 30, 2026 ("Peterson Decl."), ¶3. Mr. Gordon appeared for his deposition and was examined on August 29, 2025. *Id.* at ¶15.

Plaintiff noticed the deposition of Jennifer Wolf, CSAA's "Claims Manager." *Id.* at ¶17. Ms. Wolf appeared for her deposition and was examined on September 4, 2025. *Id.* at ¶10.

The deposition notices served as to both witnesses contained document production requests. Plaintiff contends that both witnesses "admitted to failing to search or produce any documents for the majority of the requests." See Memorandum of Points and Authorities filed September 30, 2025 ("Plaintiff's MPA"), p. 5. Plaintiff seeks an order compelling production of the requested documents and an order for a further deposition of the witnesses.

An *ex parte* application to advance the hearing date on the Motion to Compel was brought and denied by the Court. See Order entered October 29, 2025.

Analysis

The Court need not address the merits of the Motion to Compel because the motion is untimely.

The deadline for the hearing of discovery motions (the "Discovery Motion Hearing Cutoff Date") is "on or before the 15th day, before the date initially set for the trial of the action." Code Civ. Proc. § 2024.020(a).

The pending motion was not heard on or before the Discovery Motion Hearing Cutoff Date. The initial trial setting was December 8, 2025. See Minute Order entered April 10, 2025. The 15th day before December 8, 2025 was Sunday, November 23, 2025. By operation of law, the Discovery Motion Hearing Cutoff Date would have extended to Monday, November 24, 2025. Code Civ. Proc. § 2016.060.

All motions concerning discovery under the Discovery Act must be heard on or before the statutory cutoff, irrespective of any continuance or postponements of the trial date unless an exception applies. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 8.6. Although a court has discretion to hear a discovery motion after the cutoff date, the exercise of that discretion is governed by Code of Civil Procedure section 2024.050. See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568; see also CJER

Civ. Pro.—Discovery, § 8.9.

Code of Civil Procedure section 2024.050 provides: “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”

As noted above, Plaintiff’s *ex parte* application to advance the hearing date on the Motion to Compel was denied by the Court. See Order entered October 29, 2025. No further order was otherwise granted by the Court to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date.

Even if the Plaintiff had properly sought to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date to pursuant to Section 2024.050, the Court, in the exercise of its discretion would deny it.

The Court has already determined that Plaintiff was dilatory in seeking to bring the matter before the Court, including in light of the overall procedural posture of the case. See Order entered October 29, 2025, p. 2.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is DENIED.
2. The Court shall issue the order after hearing.

Courtroom Clerk's session

21. 10:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
JURY TRIAL 7 DAYS
FILED BY:
TENTATIVE RULING:

Parties to Appear.

22. 1:30 PM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Compel Court Receiver Dan Harkins’ Disclosure of The Receivership Estate’s Accounts and Records on September 3, 2025 (the

“Motion to Compel”). The Motion to Compel was initially set for hearing on December 15, 2025. The motion was later continued to January 12, 2026 and, ultimately, reset for hearing on February 9, 2026, as discussed further below. The motion is opposed.

Background

By its order issued December 19, 2023, this Court appointed Dan Harkins (the “Receiver”) as receiver over the subject business, CMD Saloon, LLC (the “Business”) for the purpose of, among other things, overseeing and managing the day-to-day operations of the Business. See Order Appoint Receiver entered December 19, 2023.

By this motion, Ms. Leone seeks to compel “disclosure of the receivership estate’s accounts and records” by the Receiver.

The motion is support by the Declaration of Dean Cafiero filed September 3, 2025 (the “Cafiero Declaration”) and the Declaration of Defendant Leone filed that same date (the “Leone Declaration”).

Analysis

Meet and Confer

At an Issue Conference conducted in this matter on January 8, 2026, the Motion to Compel was addressed in open court and continued to February 9, 2026. The Court understood that the parties had agreed to an informal process for the Receiver to provide access to the Receiver’s files for Ms. Leone’s inspection. The Court ordered the parties to meet and confer to try to resolve the matter.

- 7. Discovery Motions.** The parties are ordered to meet and confer regarding all unresolved discovery related matters. Ms. Leone’s Motion to Compel Court Receiver Dan Harkins’ Disclosure of the Receivership Estate’s Accounts and Records filed September 3, 2025 and previously set for hearing on January 12, 2026 is continued for hearing to **February 9, 2026, 1:30 pm**, in Department 34.

See Order entered January 20, 2026, ¶17.

No party has filed any further declaration or other paper showing that this meet and confer took place or indicating that any dispute remains after any informal efforts to provide access to the Receiver’s files.

For this reason alone, the Court would deny the motion.

Compelling Access to Receiver’s Accounts and Records

Even if the meet and confer were done and a dispute remains, the Court would deny the motion seeking to compel access to the Receiver’s accounts and records.

Ms. Leone’s request appears to be based on a written demand on or about April 16, 2025 sent in her capacity as the “manager of the LLC” to the Business’ counsel and the Receiver. See Leone Declaration, p. 14 and **Exhibit A** (the “Production Demand”).

Production Demand recites, among other things that it is made pursuant to Corporation Code sections 17704.10 and 17701.13. *Id.* at **Exhibit A**.

Corporation Code section 17704.10, subdivision (a), provides:

(a) Upon the request of a member or transferee, for purposes reasonably related to the interest of that person as a member or a transferee, a manager or, if the limited liability company is member-managed, a member in possession of the requested information, shall promptly deliver, in writing, to the member or transferee, at the expense of the limited liability company, a copy of the information required to be maintained by paragraphs (1), (2), and (4) of subdivision (d) of Section 17701.13, and any written operating agreement of the limited liability company.

See Corp. Code § 17704.10.

The referenced provisions of Corporation Code section 17701.13 enumerate certain limited categories of information. See Corp. Code § 17701.13(d)(1)(2) and (4) [(“(1) A current list of the full name and last known business or residence address of each member and of each transferee set forth in alphabetical order, together with the contribution and the share in profits and losses of each member and transferee. [¶] (2) If the limited liability company is a manager-managed limited liability company, a current list of the full name and business or residence address of each manager. [¶] (4) Copies of the limited liability company’s federal, state, and local income tax or information returns and reports, if any, for the six most recent fiscal years.”)].

Those categories are not coextensive with the scope of Ms. Leone’s Production Demand. The categories of documents sought are extraordinarily broad and sweeping. See Production Demand, pp. 1-4.

Even if the scope of the requested production were reasonable, Ms. Leone has not shown that an order compelling production of the records sought, akin to an order compelling further discovery compliance in pending litigation, is somehow an appropriate or available remedy.

Ms. Leone only cites to Code of Civil Procedure section 128 which describes certain broad powers vested in the Court. See Code Civ. Proc. § 128.

In any event, the Court has no doubt that it has the power and authority to make orders in relation to the receivership, including as relates to the disclosure of books and records relating to the work of the Receiver. *Lesser & Son v. Seymour* (1950) 35 Cal. 2d 494, 499 (“The receiver is a mere agent and the property in his hands is really under the control and continuous supervision of the court.”).

Nonetheless, the Court declines, in the exercise of its discretion, to issue any further order compelling the Receiver to comply with Production Demand.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel is DENIED.
2. The Court shall enter the order after hearing.

Law & Motion
Add On

23. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

Law & Motion
Add On 2

24. 9:00 AM CASE NUMBER: N25-2345
CASE NAME: CLAIM OF: MAGGIE ROE
*HEARING ON MINOR'S COMPROMISE
FILED BY: Petitioner Diane Roe
TENTATIVE RULING:

Petitioner Diane Roe ("Plaintiff") filed a Petition for Approval of Compromise on or about November 26, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 20, 2026 and subsequently advance by order of the Court to February 9, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge

“may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise and a proof of service appears of record as to the ex parte application to advance the hearing date and, again, no opposition was filed.

Disposition

The Court finds and rules as follows:

1. The Minor’s Compromise is APPROVED.
2. The accompanying Motion to File under Seal is advanced for hearing, *sua sponte*, and GRANTED as to the redacted portions of the supporting pleadings, with the sealed records being the unredacted pleadings, as proposed.
3. **MOVING PARTY TO APPEAR** to present final forms of orders for the Court’s approval and entry.